

		court. Each party indicates on the record that they understand and agree to the terms as stated.” California courts strongly favor voluntary settlements and will not set them aside absent a showing of fraud, undue influence, or similar grounds. (<i>Folsom v. Butte County Association of Governments</i> (1982) 32 Cal.3d 668, 676–677.) The Court DENIES the Motion to Set Aside or Vacate Judgment. The Court orders the Plaintiff to give notice of the Court’s ruling.
9	30-2025-01499897 Casa La Veta Associates vs. Erwin	The Court has read and considered the Defendant’s Motion to Set Aside or Cancel Judgment (ROA 44), Defendant’s Petition to Seal (ROA 42), Plaintiff’s Opposition to Motion to Set Aside Stipulated Judgment (ROA 59), and Plaintiff’s Opposition to Motion to Seal Record (ROA 61). The Court takes Judicial Notice of the Answer to Complaint (ROA 16), Request for Entry of Default (ROA 28), Notice of Hearing OC (ROA 31), Stipulation for Entry of Judgment (ROA 33), 10/7/2026 Minute Order (ROA 32), and Declaration of Default/Non-Compliance (ROA 56). As a threshold matter, the Defendant failed to serve her motions on the Plaintiff, which is grounds for the Court to deny the Defendant’s request alone. (California Rules of Court, Rule 3.1206; <i>Newsom v. Superior Court of Sutter County</i> (2020) 51 Cal.App.5th 1093, 1098-1100.) In order to avoid delays and multiple filings on the same issue, the Court will address the merits of the Defendant’s request, although not required to under the law, due to her lack of notice to the Plaintiff. California Code of Civil Procedure § 410.50 states, “A general appearance by a party is equivalent to personal service of summons on such party.” California Code of Civil Procedure § 1014 states, “A defendant appears in an action when the defendant answers, demurs, files a notice of motion to strike, files a notice of motion to transfer pursuant to Section 396b, moves for reclassification pursuant to Section 403.040, gives the plaintiff written notice of appearance, or when an attorney gives notice of appearance for the defendant.” Here, the Defendant filed an Answer with the Court on 8/15/2025, submitting to the Court’s jurisdiction. On October 7, 2025, the case was set for a Court Trial. There is no record that the Defendant requested a continuance of the Court either by motion or in open court. Defendant, in open court, had the terms of the Stipulation of Entry of Judgment she signed read to her by the Court and stated she agreed to the terms. (ROA 32 & 33) California courts strongly favor voluntary settlements and will not set them aside absent a showing of fraud, undue influence, or similar grounds. (<i>Folsom v. Butte County Association of Governments</i> (1982) 32 Cal.3d 668, 676–677.) Defendant says in her moving papers that she relied on another party to handle lease obligations, but she was the only person present in Court and the person who voluntarily signed the agreement. The Defendant provides no evidence to support a claim of fraud, undue influence, or similar grounds to disturb the Stipulation. The

		Defendant fails to meet her burden under California Code of Civil Procedure § 473. The Court DENIES the Defendant's Motion to Set Aside or Cancel Judgment. As to the Defendant's Motion to Seal Court Records, the Defendant describes hardships commonly associated with an eviction appearing on a person's record. Although the Court recognizes the Defendant's assertion that stable housing would particularly benefit her oldest child, those circumstances do not outweigh the public interest in access to court records. The Defendant entered into a stipulation providing that the record would remain sealed so long as the Defendant satisfied the judgment, including payment of past due rent, holdover damages, attorneys' fees, and costs, by March 31, 2026. The stipulation afforded the Defendant approximately five months and twenty-five days from the date of execution to comply with those terms. On April 19, 2026, the Court ordered the case unsealed following the Defendant's default and failure to comply with the terms of the stipulation. The Court finds that the Defendant has failed to meet her burden under California Rules of Court, rule 2.550(d). The Court DENIES the Defendant's Motion to Seal Court Records. The Court orders the Plaintiff to provide notice of the Court's ruling.
10	30-2026-01556559 Western National Securities vs. Veisaga	The Court has read and considered the Defendant's Motion to Set Aside Default and Default Judgment (ROA 31) and Plaintiff's Opposition (ROA 38). The Court takes Judicial Notice of the Answer (ROA 13), Request for Entry of Default (ROA 21), Notice of Hearing OC (ROA 24), 5/5/2026 Minute Order (ROA 25), and Notice of Entry of Judgment (ROA 30). The Defendant, Raquel Veisaga, filed a Motion to Set Aside Default and Default Judgment on 5/12/2026. Defendant received notice on April 21, 2026, at 7:55 AM that the Court would be holding a court trial on this unlawful detainer matter on 5/5/2026 at 8:30 AM in Department C61 (ROA 24). On 5/5/2026 at 9:43 AM, the Court called the court trial. Defendant failed to appear, Plaintiff proved their case, and judgment was entered in favor of the Plaintiff (ROA 25). Defendant states in her moving papers that on May 5, 2026, her car was towed, which she cites as the basis for her surprise and non-appearance in court. The Defendant fails to explain why, knowing she had a court trial scheduled for that morning at 8:30 AM, she did not use other means of transportation, including the public bus system, Uber, Lyft, or asking a friend for a ride. Defendant fails to establish her burden under California Code of Civil Procedure § 473(b). The Court views her actions as inexcusable neglect.